

**Debre Markos University School of Law, Model Exam for
Undergraduate Law Students.**

Question ID:2215 and answer is B

2.What is the importance of law-determining sources of international law?

- A.They are sources for binding international norms.**
- B.They are important in indicating relevant mandatory international norms over a particular issue.**
- C.They create rights and obligations to subjects of the international legal system.**
- D.They are primary sources of international**

Question ID:2227 and answer is B

3.Type of Customary International Law that can be formed without requiring a long duration and a ripening process is known as:

- A.Immediate Custom**
- B.Imminent Custom**
- C.Instant Custom**
- D.Instinctive Custom**

Question ID:2233 and answer is C

4.One of the following is the right order of treaty making process.

- A.Negotiation—Adoption—Accession—Entry into Force—Expression of consent to be bound**
- B.Negotiation—Adoption—Expression of Consent to be Bound—Entry into Force—Accession**
- C.Adoption----Accession—Negotiation—Entry into Force—Expression of Consent to be Bound**
- D.Adoption—Ratification—Negotiation—Entry into Force—Expression of Consent to be Bound**

Question ID:2340 and answer is B

5.The Vienna Convention on Law of Treaties between States adopted:

- A.Solely subjective approach of treaty interpretation**
- B.Solely objective approach of treaty interpretation**
- C.Mixed approach of treaty interpretation**
- D.Niether of them**

Question ID:2341 and answer is C

6.One of the following is void treaty:

- A.A treaty that is formed based on erroneous fact.**
- B.A treaty that is formed contrary to a juscogens norm.**
- C.A treaty that is formed by coercion of representative of a State.**
- D.A treaty that is contradictory with new juscogens.**

Question ID:2342 and answer is B

7.One of the following alternatives is recognized by the Ethiopian income tax law as a unilateral solution to avoid double taxation.

- A.Exempting a foreign income from taxation in Ethiopia.**
- B.Treating a tax paid in a foreign jurisdiction as expense.**
- C.Crediting a foreign tax in determining a tax in Ethiopia.**
- D.Applying double tax avoidance provisions of tax treaties.**

Question ID:2343 and answer is C

8.Which one of the followings is among the characteristics of tax?

- A.It is a consent based charge on a tax payer's private property.**
- B.A tax payer can demand a direct return from the government.**
- C.Its compulsory nature distinguishes tax from all other payments.**
- D.Tax is always a legal collection aimed at welfare of the society.**

Question ID:2344 and answer is D

9. One of the following principles of taxation advocates that a tax system should not influence the economic decisions of tax payers.

- A. Principle of independence.**
- B. Principle of neutrality.**
- C. Principle of certainty.**
- D. Principle of free decision.**

Question ID:2345 and answer is B

10. Which one of the following alternatives is an advantage of indirect taxes over direct taxes?

- A. Less inconvenient and less burdensome than the direct taxes.**
- B. The revenue from indirect taxes cannot be estimated accurately.**
- C. Indirect taxes create a better civic consciousness than direct taxes.**
- D. Indirect taxes can prevent inflation better than the direct taxes.**

Question ID:2346 and answer is A

11. From the following alternatives, one is TRUE about the VAT system of Ethiopia.

- A. The taxation power is explicitly assigned to the Federal Government by the FDRE constitution.**
- B. The Ethiopian VAT system recognized ‘origin principle’ of imposing Value added Tax.**
- C. The Ethiopian VAT system recognized ‘Subtraction method’ of computing VAT Liability.**
- D. Registered persons are not the only persons under obligation to collect Value Added Taxes.**

Question ID:2347 and answer is D

12. Which one of the following alternatives is TRUE about custom duties?

A. Their increment is desired by advocates of free trade.

B. Generating public revenues is their only purpose.

C. Maintaining sovereignty is among their reasons.

D. They are imposed mainly to ban importation.

Question ID:2348 and answer is C

13. ____ A party litigated in the Federal First Instance Court and won the case, thereby becoming judgment creditor. Nevertheless, the property of the defendant is located in the State of Amhara. The plaintiff wants to attach the property of the judgment debtor situated in the State of Amhara. So, he took an authenticated copy of the judgment of the Federal First Instance Court and requested the assistance of the court in Bahir Dar for the purpose of execution. The court declined to enforce the judgment of other courts outside of Amhara. Which of the following doctrine could solve this dilemma?

A. The Doctrine of Convergence of Legal Principles

B. The Doctrine of Central Supremacy

C. The Doctrine of Full Faith and Credit

D. The Doctrine of Mootness

Question ID:2349 and answer is C

14. ____ Which of the following opinion is agreeable?

A. Zebiba presents a statement of claim to the court. The registrar at the court rejected her statement of claim on the ground that the statement doesn't contain the precise value of the claim. Zebiba thinks the registrar rejected her statement of claim erroneously.

B. A dispute arises between a husband and wife. The husband claims his wife is an ugly woman. The wife, in turn, alleges that she is a beautiful lady ever lived on earth. The husband reduces this dispute into a statement of claim; and presents the same to a court. The registrar at the court rejects the statement of claim on the ground that the dispute is not justiciable. The husband thinks the rejection of the statement of claim by

the registrar is a textbook example of ultra vires.

C.Ato Hamerwuha has recently won an international handwriting contest held in Ireland. As soon as he returned to Ethiopia, he prepared a beautifully handwritten statement of claim and presented the same to the court. The registrar rejected his statement of claim on the ground that it should have been type-written. He thought the rejection by the registrar is ridiculous.

D.Lelissa is a wealthy rural landholder in Gebra Guracha. A decade ago he transferred three hectares of his holding to Gemmeda, who is a resident of Fiche, through rent contract for a period of ten years. The rent contract was formed in Burayu. The contract period ended recently. But Lelissa found out that the land is seriously damaged due to Gemmeda's failure to properly utilize it. Lelissa thinks federal courts have jurisdiction over the case.

Question ID:2351 and answer is C

15.Ato Desta and Ato Gemechu are residents of the State of Amhara. Ato Desta institutes a civil claim against Ato Gemechu at a state court of Amahara. Ato Gemechu appears with his statement of defence; thereafter the court adjourned the case for first hearing. On the day fixed for the hearing of the suit, Ato Awol, who is a permanent resident of the State of Afar, appears before the state court with a statement of intervention containing strong justifications that the suit between Desta and Gemechu jeopardizes his interest. The presiding judge believes Ato Awol should be allowed to intervene. Which of the following is the best approach the judge needs to take under the circumstance?

A.The judge should strike out the suit as the involvement of Ato Awol in the suit would make the case a federal matter; and order the parties to file their case in a federal court.

B.The judge after endorsing the application for intervention and serving Ato Desta and Ato Gemechu with the statement of intervention should adjourn the case for first hearing; and strike out the suit for lack of material jurisdiction.

C.The judge should continue to preside over and render judgement on the case in spite of the fact that the involvement of Ato Awol makes the

case fall within the judicial power of federal courts.

D.The judge needs to dismiss the application for intervention for the mere reason that the involvement of Ato Awol would make the case a federal matter.

Question ID:2352 and answer is C

16.Which of the following is correct about rules governing local jurisdiction under the Civil Procedure Code of Ethiopia?

A.The rules are helpful only to allocate judicial business between courts of a given judicial system exercising similar material jurisdiction.

B.The rules help determine the allocation of judicial power between federal and state courts.

C.They go to the inherent power of the court and, as such a statement of claim filed in a court not having local jurisdiction shall be rejected without a need to summon the defendant.

D.They are non-waivable.

Question ID:2353 and answer is A

17.The rules of joinder under Ethiopian law are:

A.Jurisdictional in nature in that non-compliance affects the validity of the decision of a court.

B.Procedural in nature in that the decision of a court remains valid despite non-compliance.

C.Procedural in nature but doesn't require the court to have local and material jurisdictions on each claim and party joined.

D.In principle limitative on the nature of claims and the number of parties to be joined.

Question ID:2354 and answer is B

18.Which of the following question is not addressed by the Ethiopian law of civil procedure?

A.'Where may a person file suit against another person?'

- B. 'If someone has been sued, can that person sue the plaintiff back?'
- C. 'Can a person dissatisfied with the decision of a court appeals for an appellate court?'
- D. 'What are the powers of the police in investigating crimes?'

Question ID:2355 and answer is D

19. For a rule utilitarian an action is always morally right, when

- A. It confirms to a set of moral rules defined in a rule book.
- B. It is in tune with the greater good for the masses.
- C. The act of the individual is self-indulgent.
- D. It contravenes with the deeply entrenched moral values of the society.

Question ID:2356 and answer is A

20. Articles of clerkship refers to _____

- A. An apprenticeship with a practicing lawyer
- B. A qualification examination to become a practicing lawyer.
- C. A practical judicial training taken by candidates at a training facility.
- D. An admission criterion to a bar association.

Question ID:2357 and answer is A

21. For Kant a Maxim is, _____

- A. A Moral code
- B. A condition
- C. A prescribed thought process
- D. A subjective principle of action

Question ID:2358 and answer is D

22. It's unethical for a judge to preside over a case, when _____

- A. One of the parties is a public figure with his/her own sphere of

influence.

B.She/he has prior knowledge regarding the merit of the case.

C.One of the parties to the case is a previous convict.

D.The case involves local government officials.

Question ID:2359 and answer is B

23.A lawyer is said to be in a moral dilemma, when _____

A.She/he is unable to decide whether or not to represent a client who was previously charged with a heinous crime.

B.She/he struggles to choose between two cases having different monetary values.

C.She/he is unable to distinctly choose between two conflicting values of professional significance and yet has to ultimately choose one of them.

D.She/he is reluctant to consider which value to prioritize.

Question ID:2360 and answer is C

24.Which one of the following is correct about a moral issue?

A.It involves making factual judgments.

B.It involves making value judgments based on moral principles.

C.It encompasses making both factual and value judgments.

D.It involves making value judgments based on one's own principles.

Question ID:2361 and answer is B

25.Which one of the following is odd from the others?

A.Direct intention

B.Indirect intention

C.Advertent negligent

D.Omission by commission

Question ID:2365 and answer is D

26.A type of concurrence that a single act violates different criminal law provisions is

- A.Material concurrence**
- B.Notional concurrence**
- C.Imperfect concurrence**
- D.Concurrence of victims**

Question ID:2366 and answer is B

27.Among the following issues, Ethiopian courts have subsidiary jurisdiction

- A.Crimes committed in the Ethiopian territory**
- B.Crime committed outside the territory of Ethiopia against international law**
- C.Crimes committed in a foreign country against Ethiopia's interest**
- D.Crimes committed outside Ethiopia against Ethiopian national**

Question ID:2369 and answer is B

28.Among the following statements, one is correct.

- A.As a rule, preparatory act is punishable**
- B.As a rule, an attempt is not punishable**
- C.As a rule, negligent crimes are not punishable**
- D.As a rule, intentional crimes are not punishable**

Question ID:2371 and answer is C

29.Which one of the following is an affirmative defense under the FDRE Criminal Code of Ethiopia?

- A.Intoxication**
- B.Insanity**
- C.Infancy**
- D.Necessity**

Question ID:2373 and answer is D

30.Which one of the following types of criminal punishment is a secondary type of punishment under the FDRE Criminal Code?

- A.Imprisonment**
- B.Fine**
- C.Capital punishment**
- D.Admonishment**

Question ID:2375 and answer is D

31.Under international human rights law, which one of the following is NOT part of states obligations to protect the human rights of their subjects?

- A.Prevent violations of rights by any individual or non-state actor.**
- B.Eradicate any incentives to violate rights by third party.**
- C.Provide access to legal remedies when violations occur.**
- D.Support citizens to advance their living standards.**

Question ID:2386 and answer is D

32.An example of classical human right the realization of which simply requires non-interference by a state is:

- A.Freedom from want.**
- B.Freedom of speech.**
- C.Right to access to education**
- D.Right to housing**

Question ID:2388 and answer is B

33.Which one of the following not correctly describes the nature of human rights?

- A.They are commonly understood as moral entitlements.**

- B.They attach to persons taking the nationality of a given state.**
- C.They are inalienable except in legally defined circumstances.**
- D.They primarily carry out duties on countries and their agents.**

Question ID:2390 and answer is B

34.A unique feature of the substantive contents of human rights in the FDRE Constitution, as compared to other African Constitutions, is:

- A.Its recognition of absolute individual rights and freedoms.**
- B.Its recognition of the right to self-determination**
- C.Its acknowledgment of the right to development.**
- D.Its recognition of legally justifiable labor rights.**

Question ID:2392 and answer is B

35.Which one is correct about the notion of property from the given alternatives?

- A.Property is a static concept thus, its meanings and scope couldn't change from time to time and from place to place.**
- B.Neither all things are objects of property rights, nor are all rights that persons have with respect to things property rights.**
- C.In its strict legal sense property means everything that has material or moral value for human beings beginning with their own body and reputation.**
- D.Broadly, property may be defined as an exclusive right to control, use and transfer an object or a thing of economic importance and its fruits.**

Question ID:2396 and answer is B

36.From the given alternatives which one is incorrect about the right of possession?

- A.It connotes the detention and enjoyment of a thing by a person himself only.**
- B.The corpus and the animus elements are the ingredients of possession.**
- C.A person could have possession and its advantages without physical**

control.

D.A person could have both the physical control as well as the merits attached to possession.

Question ID:2398 and answer is A

37.Which one of the following is odd from the others?

A.Ownership

B.Usufruct

C.Servitude

D.Expropriation

Question ID:2400 and answer is D

38.Of the following one is not true about the effects of possession under the Ethiopian civil code?

A.Possession may create ownership either by occupation or through acquisitive prescription as stipulated under art 1151 and 1168 Of the civil code.

B.Possession is a prima facie evidence of ownership, and he who would disturb a possessor must show either title or a better possessory right.

C.Possession is the basis for certain remedies since, the law protects a possessor, as it does not always know that a possession in question is unlawful.

D.A possession that is acquired through violence or force can always produce the effects of a lawful possession.

Question ID:2402 and answer is D

39.Which of the following statement best explained the concept of derivative acquisition?

A.It refers to the mode of acquisition of right of ownership through the creation of new property right.

B.It is a mode of acquisition in which the right of the transferee is dependent on the right of the transferor.

C.It is a mode of acquisition of ownership through the union of two or more things belonging to two or more persons.

D.It is the right of ownership exercised by two or more persons in relation to the same object.

Question ID:2405 and answer is B

40.Which one of the following statement is incorrect about joint ownership?

A.The thing, which is jointly owned, could be divided.

B.Each joint owner is considered as owner of each and every part of the thing.

C.Agreements entered in to by the joint owners couldn't be defective and contrary to mandatory provisions of the civil code.

D.The permissive provisions of the civil code shall apply where there is no agreement or where such agreement is defective.

Question ID:2406 and answer is A

41.Which one of the following person can be both the agent of a trader and a trader itself at the same time:

A.commercial travelers

B.commercial representatives

C.commercial agent

D.commercial manager

Question ID:2426 and answer is C

42.Which one of the following forms of partnership is suitable for professional business activities?

A.General partnership

B.Limited partnership

C.Joint Venture

D.Limited liability partnership

Question ID:2429 and answer is D

43.Which one of the following business organization contain both limited partners and general partners together?

- A.General partnership**
- B.Private limited company**
- C.Joint Venture**
- D.Limited liability partnership**

Question ID:2431 and answer is C

44.Which one of the following is the power of ordinary general meeting of a company?

- A.Amending the memorandum of association of the company**
- B.Increasing or reducing the capital of the company**
- C.Changing the nationality of the company**
- D.Appointing or removing directors and auditors of the company**

Question ID:2434 and answer is D

45.Among the following events which one deals with the change in the form of a given business organization in to another one?

- A.Division**
- B.Merger**
- C.Conversion**
- D.Liquidation**

Question ID:2435 and answer is C

46.Which one of the following cannot be a basic factor for revision of the 1960 Ethiopian commercial code?

- A.The previous Code contained provisions that were quite outdated and so an amendment was long overdue.**

- B.The incompatibility of the old code with the present business license and registration, trade name and trademark laws.**
- C.The existence of many contradictions between the Amharic and the English version of the code.**
- D.The insufficiency of the rules protecting minority shareholders in the old code and the need to reform them.**

Question ID:2613 and answer is C

47.The basic element in personal creditor of the heirs and creditors of the deceased

- A.Pending liquidation, personal creditors of the heirs have a right to claim from the properties forming part of succession.**
- B.Creditors of the deceased can claim payment from the properties forming part of the succession after the closure of liquidation.**
- C.Creditors of the deceased cannot claim payment from the properties forming part of the succession after the closure of liquidation.**
- D.Post- liquidation creditors of the inheritance may claim payment from legatees by universal title beyond the value of property the legatee has.**

Question ID:2615 and answer is B

48.An irrelevant condition for the application of the rule paternal paternes maternal maternis

- A.The fact that the deceased must die intestate**
- B.The fact that the deceased does not have surviving descendants**
- C.The will of the testator**
- D.The immovable nature of the property**

Question ID:2618 and answer is C

49.One is outside the scope of the power of a liquidator

- A.Search for will of the deceased**
- B.Administration of the succession**
- C.Payment of debts of the succession**

D.Approving legacies under the will

Question ID:2620 and answer is D

50.Are preferred heirs at law when the deceased is not survived by descendants, mother and father

- A.Siblings**
- B.Parents**
- C.Grandparents**
- D.Children**

Question ID:2622 and answer is A

51.A person does not lose his capacity to succeed owing to unworthiness

- A.He committed the crimes that gives rise to unworthiness against the brother of the deceased**
- B.He is pardoned for what he did by the deceased**
- C.He committed the crime that gives rise to unworthiness against the spouse of the deceased**
- D.His attempt to commit a crime that gives rise to unworthiness fails**

Question ID:2623 and answer is B

52.Which of the following is a prohibited act to the employer?

- A.Differentiation payment among female workers based on their educational backgrounds.**
- B.Terminate a contract of employment based on the labour law.**
- C.Unduly delay a collective bargaining contrary to good faith.**
- D.Compel any worker to execute any task which is unsafe to the environment.**

Question ID:2629 and answer is C

53.Which one of the following shall be a valid ground for the suspension?

- A.leave without pay granted by the employee upon request by the employer.**
- B.full suspension, due to force majeure more than 10 consecutive days.**
- C.leave of absence for the purpose of public holyday.**
- D.Political imprisonment for a period not exceeding 30 days.**

Question ID:2630 and answer is D

- 54.Which one is a Contract of Employment for indefinite Period?**
- A.The replacement of a worker who is temporarily absent due to leave.**
 - B.Seasonal works which relate to the permanent part of the works.**
 - C.The performance of work to minimize the abnormal pressure of work;**
 - D.The permanent activity of the employer which is done intermittently.**

Question ID:2633 and answer is D

- 55.Every worker shall have common obligations by their employer except one?**
- A.personally perform the work specified in his contract of employment**
 - B.follow instructions given by the employer based on work rules**
 - C.handle with due care all equipment and tools given by employer**
 - D.handling assigned activities to his own home for the sake of the employer.**

Question ID:2634 and answer is D

- 56.Among the following workers which could be affected first by the reduction of workforce order?**
- A.expectant mothers**
 - B.those employees with disability**
 - C.workers' representatives**
 - D.those having fewer dependents**

Question ID:2636 and answer is D

57.Which of the following is not the rationale to prohibit a woman to remarry during period of widowed under the RFC?

- A.To respect the right of children to know and be cared for by his/her parent or legal guardian.**
- B.To avoid any conflict on paternity as to who is the father of that child.**
- C.To fill the gaps in which medical science could not necessarily prove the existence of pregnancy.**
- D.To protect the rights of children enshrined in the FDRE constitution**

Question ID:2638 and answer is C

58.Identify the non-observance of essential conditions of marriage which causes necessarily the dissolution of marriage

- A.Marriages concluded by judicially interdicted persons**
- B.Marriages concluded under the influence of violence**
- C.Marriages concluded in the existence of fundamental error**
- D.Marriages concluded with person related by consanguinity.**

Question ID:2842 and answer is D

59.The federal revised family law requires the deposition of contract of marriage in the court or with officer of civil status. What could be the effect of not depositing the contract of marriage?

- A.Failure to deposit the contract of marriage will lose its validity**
- B.Failure to deposit the document should not make the document to lose its validity**
- C.The contract will have binding effect as between the spouses but not third parties**
- D.There is no any consequences to failure of the deposition of the contract stated**

Question ID:2849 and answer is D

60.Of the following one could not always be taken as personal property

of the spouses.

A.properties acquired by onerous title after marriage through the exchange of personal property

B.The property registered in the name of one of the spouse before their marriage

C.The property acquired after marriage by succession of donation

D.Property which the spouses get through either succession or donation

Question ID:2853 and answer is A

61.Which of the following is not true about debt of the spouses?

A.Personal debt of the spouses may be paid from common property.

B.Personal debt of the spouses should be first recovered from personal property of the indebted spouse.

C.Debts incurred in the interest of the house hold cannot be paid from personal property of spouses.

D.Debts incurred in order to fulfill an obligation of maintenance to which one of the spouses is bound can be paid from common property.

Question ID:2856 and answer is C

62.What is the status of the relationship between the adopted child and his/her the family of origin?

A.It ceases to exist as soon as an adoption agreement is concluded

B.It is not affected by the agreement of adoption

C.Its status is to be determined by the terms of the adoption agreement

D.Its status is to be determined having regard to the best interest of the child

Question ID:2859 and answer is B

63.Which one of the following is correct about Thomas Hobbes concept of social contract.

A.Social contract is a wholesale of our rights to the sovereign in return of security

B.social contract is surrender of some of our rights to the sovereign save our rights to revolt against abuse

C.In social contract the sovereign has reason to act for security with limitation.

D.In social contract laws are emanated from courts judgment

Question ID:2862 and answer is A

64.Socrates ideas of law states that

A.Law is valid so long as it is in conformity with certain basic moral principles

B.It is not advisable to accept the command of the superior though it is just

C.It is not advisable to follow the command of the superior though it is fair.

D.When human made law is in conflict with the ‘god’s’ law the former should prevail

Question ID:2863 and answer is A

65.H.L.A Hart Provides about primary rules as

A.Primary rules provides the procedural and adjective laws

B.Primary rules govern primitive society

C.Primary rules emanated from the sovereign

D.Primary rules serve a large number of people

Question ID:2866 and answer is B

66.Assume that the FDRE government has promulgated a law that legalizes abortion. However, the community reproached the law as it goes against the fundamental right of the unborn child by invoking international human right conventions. Hence based on the foregoing scenario, which one of the following is correct?

A.The FDRE government is a legal moralist

B.The FDRE government is a legal paternalist

- C.The FDRE government follows a natural law theory**
- D.The FDRE government follows common law legal system**

Question ID:2868 and answer is B

67.According to Von Savigny the concept of the law is described as:

- A. Law is the product of the common consciousness of the society.**
- B.Law is emanated from a specified sovereign organ.**
- C.The source of the law is not custom but the command of the sovereign.**
- D.The sources of the laws are the judges**

Question ID:2870 and answer is A

68.According to Lon Fuller inner morality of law :-

- A.Laws shall be made for temporary purpose only**
- B.Laws shall be retroactive**
- C.Laws shall be Intelligible**
- D.Laws shall be inconsistent**

Question ID:2871 and answer is C

69.One of the following is not a common rule applicable for damage committed by animals and motor vehicles under the Ethiopian strict liability law.

- A.In both cases, the owner is liable without fault.**
- B.In both cases, the holder is liable for damage caused under his custody.**
- C.In both cases, the employee is liable only for fault.**
- D.In both cases, the victim shall claim compensation only from the owner.**

Question ID:2886 and answer is D

70.Which one of the following statements appropriately explain the concept of strict liability?

- A.Strict liability includes trespass on persons, trespass on persons' property, defamation, and unfair competition.**
- B.In strict liability, before claim a compensation, ascertaining the tortfeasor' conduct /behavior is necessary.**
- C.It is necessary to show that the defendant was maliciously/negligent when the injury was sustained.**
- D.In strict liability, the occurrence of damage by the defendant is adequate to claim compensation.**

Question ID:2889 and answer is D

- 71.One of the following shall be the justifications for liability of employers for their employee's actions.**
- A.The law presumes that the Employees are always in a better economic position than the employers are.**
 - B.Employers have not a possibility to distribute the loss among their customers though they pay compensation for their employee's liability.**
 - C.The law presumes that the Employers are always in a better economic position than the employees are.**
 - D.In law of extracontractual liability, there is no legitimate ground to raise compensation to employers for employees' action.**

Question ID:2891 and answer is C

- 72.Which one of the following statements is correct?**
- A.Though the existence of damage is an important element of extra-contractual liability law, not all types of damage are compensable.**
 - B.An employer shall be free from vicarious liability where one of his employees cause damage to another person intentionally.**
 - C.Under the Ethiopian extra contractual liability law, failure to prove the existence of fault of the defendant exempts him from strict liability**
 - D.Chain of command shall not be used as a defense to mitigate the extent of damage for extracontractual liability compensation.**

Question ID:2894 and answer is B

73. Who shall be liable if a minor child breaks a car's window while walking from School to his home?

- A. The minor's teacher**
- B. The minor's tutor**
- C. The minor's parents**
- D. The school**

Question ID:2896 and answer is C

74. One of the following is true about extracontractual liability compensation under Ethiopian tort law.

- A. Feelings and emotional injuries shall be recovered by Pecuniary compensation.**
- B. Material damages shall be reward by non-pecuniary compensation.**
- C. The extent of damages for the victim may exceed than the extent of injury.**
- D. The extent of damages for the victim may less than the extent of the injury.**

Question ID:2898 and answer is D

75. One among the following is correct about defect in consent during formation of contract

- A. Reservations and restriction intended by one of the parties do not imply absence of consent even if they are communicated to the other party.**
- B. A contract may be invalidated on the ground of defective consent if there is mistake that exclusively relates to motives of one party.**
- C. Duress can be taken as defect in consent if the exerted compulsion is serious regardless of position and age of the parties concerned**
- D. Threat to exercise a right shall not be ground for invalidation of a contract unless it was used to exploit one of the parties.**

Question ID:2908 and answer is B

76.Which one of the following is wrong about effects of a validly formed contract?

- A.The court may interpret validly formed contracts in case of ambiguities for digging out common intention of the parties.**
- B.A debtor is free to discharge his obligation via third party in the absence of an express agreement otherwise.**
- C.It is possible to refuse performance of his obligation alleging insufficiency of quantity and quality of fungible things.**
- D.A party may refuse performance of his obligation if the other contracting party unequivocally shows he will not discharge his obligation.**

Question ID:2910 and answer is C

77.Which one of the following is incorrect statement about invalidation of contract?

- A.In case of invalidation and cancellation parties shall be as far as possible reinstated to their former economic position regardless of interest of third party in good faith.**
- B.There are scenarios by which a contract may not be invalidated because such invalidation is not possible or would involve serious disadvantage.**
- C.Partial vitiation of a contract will bring invalidation of the whole contract if such vitiation affects the essence of the contract.**
- D.The party who is entitled the right to invalidate a contract may waive such right if the ground for invalidation has already disappeared.**

Question ID:2912 and answer is A

78.Choose the correct statement about plurality of debtors and creditors?

- A.Both co-debtors and co-creditors are jointly and severally liable and entitled to claims respectively.**
- B.All co-creditors are jointly and severally entitled to claim payment whereas, all co-debtors are not jointly and severally liable.**

C.Co-debtors are jointly and severally liable whereas, all co-creditors not are not jointly and severally entitled to claim payment.

D.Both co-debtors and co-creditors are not jointly and severally liable and entitled to claims respectively.

Question ID:2916 and answer is C

79.One among the following is wrong about contracts of guarantee?

A.Consent of the debtor is mandatory for the making of contracts of guarantee.

B.Specification of maximum amount of guarantee is mandatory in contract of guarantee.

C.Parties to the contract are prohibited by law not to increase liability of guarantor by subsequent agreements.

D.Extinction of the principal contract by whatsoever reason can release the guarantor from liability.

Question ID:2918 and answer is A

80.One is true about the condition of police investigation.

A.It depends on the police probable belief of any accusation/complaint.

B.It depends on the probability of the accountability of the suspect

C.It depends on the probability of the commission of the crime

D.It depends on the police receive of accusation/complaint.

Question ID:4426 and answer is D

81.Which one best describes the effect of flagrant offenses?

A.Any person can arrest some suspects without warrant

B.Any person can arrest some suspects with warrant

C.Police can arrest any suspect without warrant

D.Police can arrest any suspect with warrant

Question ID:4428 and answer is A

82.Which element of our criminal procedure law and the corresponding system of criminal procedure is true?

- A.Inquisitorial as it allows unconditional right for judges to question witnesses**
- B.Adversarial as it doesn't oblige the suspect to cooperate with the government.**
- C.As it allows parties to present their own case, it is adversarial indeed.**
- D.Inquisitorial as judges have extensive pre-trial investigative right.**

Question ID:4431 and answer is B

83.Which one is right about the right of a person accused?

- A.Accused persons shall answer any questions whether their answer is true or not.**
- B.Evidence found by coercion is admissible if supported by other evidence.**
- C.Accuse persons shall be represented by legal counsel to get fair trial.**
- D.Accused persons shall not testify against themselves.**

Question ID:4432 and answer is C

84.Ato Gedlu is a suspect for the murder of Ato Tesie. The most probable charge of the case is ordinary homicide which is punishable with rigorous imprisonment from 5-20 years (Article 540 of the Criminal Code). Do you think that the suspect should be release on bail? (Which statement best describes about the right to bail from the given alternatives?)

- A.No, as a matter of principle, since the victim has died and the crime is punishable with rigorous imprisonment up to 20 years.**
- B.No, because the victim has died and the crime is punishable with rigorous imprisonment of more than fifteen years.**
- C.Yes, because even if the victim has died, the crime is not punishable with minimum of 15 years rigorous imprisonment.**
- D.Yes, because there is no evidence that the suspect would tamper with evidence even if the crime is serious.**

Question ID:4434 and answer is C

85.Which one is not among the promotional mandates of African Commission on Human and People's Rights?

- A.Receiving state reports**
- B.Adopting general comments**
- C.Conducting research**
- D.Adpting decisions on individual communications**

Question ID:4442 and answer is D

86.As we understood from the South African approach, for socio-economic rights to be directly justiciable:

- A.The right should not be explicitly provided for in a legislation.**
- B.There shall be empowered and willing machinery.**
- C.There shall be constitutional court**
- D.There shall be separate mechanism for enforcement of socio-economic rights**

Question ID:4453 and answer is B

87.How UN Charter addressed human rights?

- A.Compelling reference of human rights**
- B.Just a general but nont compelling reference of human rights**
- C.Intensive and imperative reference of human rights**
- D.Intensive reference for civil and political rights**

Question ID:4456 and answer is B

88.Which one is not a core international human rights treaty?

- A.ICCPR**
- B.CRC**
- C.UDHR**

D.ICESCR

Question ID:4459 and answer is C

89.Which one is not the characteristic of surety under Ethiopian Law of Contracts?

- A.A surety contract may not be made in writing.**
- B.A surety contract shall provide maximum amount of to be guaranteed by the guarantor.**
- C.A surety contract is accessory obligation in a sense that it is dependent on the existence of the principal obligation.**
- D.An undertaking to guarantee an obligation shall not be implied.**

Question ID:4462 and answer is A

90.One among the choices does not define liberative prescription.

- A.A prescription which relieves the beneficiary from certain obligations after the lapse of certain period of time.**
- B.A prescription which imposes duty on the beneficiary with certain right after the expiry of certain period of time.**
- C.A prescription which bar a right to claim performance from the debtor.**
- D.A prescription which allows creditors to claim their right upon expiry**

Question ID:4465 and answer is A

91.The principle on the law of compensation against non-performance is normal damage. However, in exceptional circumstances an actual damage may be rewarded. All, except one are those exceptional circumstances.

- A.If the debtor caused damage without awaring cognizant of special circumstances informed by the creditor.**
- B.If the debtor can prove that an actual damage incurred by the creditor is less than the normal damage calculated by the court.**
- C.If the debtor caused the damage on the creditor negligently**

D.If the debtor is bankrupt

Question ID:4467 and answer is B

92.Which does not represent a rule of interpretation under Ethiopian Contract Law?

- A.Good faith serves as a primary tool of interpretation of contracts.**
- B.Terms of contract framed exclusively by one of the parties shall be interpreted in favour of that party.**
- C.Preceding and successive conducts of the parties shall be taken in to account in identifying common intention of the parties.**
- D.Judges may modify rights and obligations through interpretation**

Question ID:4469 and answer is D

93.Which one of the following statements is incorrect?

- A.If a person is forced to conclude contract we say there is duress**
- B.False statement can be a cause for defect in consent even if there is no special relationship between the parties that give rise to special confidence**
- C.A mistake must be fundamental mistake to invalidate a contract**
- D.Fraud by third party can be claimed without due regard to the knowledge of the other contracting party**

Question ID:4548 and answer is D

94.Which one is true about vertical division of powers in Federal arrangement?

- A.It refers to the sharing of power among the Federal government and regions**
- B.It concerns with which specific power should be allotted to which branch of government**
- C.There is a common consensus that power which concerns the nation as whole should be given for regional government and vice versa**
- D.The pattern of enumeration of power in Ethiopia constitution is two**

list system

Question ID:5040 and answer is A

95. Identify wrong statement about division of legislative power among tiers of government

- A. Power may be shared in case when listing the power of one level of government is hard**
- B. In framework power sharing, both level of government exercise the same autonomy within a single power**
- C. In concurrent power sharing, there is no capacity disparity between level of government**
- D. Power which concerns are peculiar and not the concern of nation as whole should be given for regional states**

Question ID:5041 and answer is B

96. Which one is not correct about the rampant trends followed by Federal state concerning division of executive power?

- A. In dual federalism both Federal and Regional, states do have their own executive co- extensive with the legislature.**
- B. There is a compact assumption in executive federalism that two tiers of government are competitive enough**
- C. The duality of executive is preeminent in enforcing federal law with no delay**
- D. There is a sufficient consensus that in executive federalism the two tiers of government are cooperative**

Question ID:5042 and answer is B

97. Identify the wrong statement about legal ways of enforcement of federal law throughout regional state

- A. Federal government entrusted the regional state executive**
- B. Federal government enforce through its institution**
- C. Regional executive even without delegations**

D.Informally through party Channels

Question ID:5043 and answer is D

98.Where do you find the Ethiopian Primes Ministers power from the standpoint of the head of government?

- A.He/she is a first above unequal**
- B.He/she his first among unequal**
- C.He/she is first among equal**
- D.He/she is the first above equal**

Question ID:5044 and answer is C

99.Which one of the following is not true about the judiciary's organization in federal system?

- A.In USA model, both tires of government do have their own inferior and superior courts**
- B.In integrated court system, the federal court principally entertains appeal claims**
- C.In the Ethiopian system, regional government have always the final say on their own cases**
- D.In integrated court system regional government cannot have final say even on their own cases**

Question ID:5045 and answer is C

100.Which one is the basic rationale that necessitates the HOF as a choice to adjudicate constitutional matters in Ethiopia?

- A.The political nature of the FDRE constitution**
- B.The legal expertise of the members of house of Federation**
- C.The former history of the judiciary**
- D.The role played by nation, nationality and people in FDRE constitution**

Question ID:5047 and answer is D
